

HOUSE No. 2793

The Commonwealth of Massachusetts

PRESENTED BY:

Mark J. Cusack

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing a retirement board system local option for totally and permanently incapacitated workers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mark J. Cusack</i>	<i>5th Norfolk</i>	<i>1/16/2025</i>

HOUSE No. 2793

By Representative Cusack of Braintree, a petition (accompanied by bill, House, No. 2793) of Mark J. Cusack for legislation to provide local option for retirement boards to grant retirement to totally and permanently incapacitated workers. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3793 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing a retirement board system local option for totally and permanently incapacitated workers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 32 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after section 100A the following section:-

3 Section 100B. Notwithstanding any general or special law to the contrary, any city or
4 town that accepts this section pursuant to section 4 of chapter 4 may direct its retirement board
5 system to allow for the retirement of any member of the system who: (i) is a part of Group 4, as
6 described in section 3, including members of a police and fire departments or any other public
7 safety officers belonging to Group 4; and (ii) as a result of injuries sustained while in the
8 performance of their duties, is totally and permanently incapacitated from performing the
9 essential duties of the job employed at the time of the injuries sustained.